

The court SUSTAINS Defendants' demurrer to the FAC's sixth cause of action with 20 days' leave to amend.

Calendar Line 8

Case Name: *Citibank, N.A. v. Chan*

Case No.: 26CV489051

On March 11, 2026, plaintiff Citibank, N.A. ("Citibank") filed a complaint against defendant Jeannie Y. Chan ("Chan"), asserting a cause of action for breach of a credit card agreement. A proof of service filed on March 23, 2026 states that Chan was personally served on March 21, 2026. On April 13, 2026, Chan filed an answer to the complaint. On April 20, 2026, Chan filed a motion to quash service of the summons and complaint on the ground that the court lacks personal jurisdiction over her due to improper service of process.

"[I]t has long been the rule in California that a party waives any objection to the court's exercise of personal jurisdiction when the party makes a general appearance in the action." (*Roy v. Super. Ct. (Lucky Star Industries, Inc.)* (2005) 127 Cal.App.4th 337, 341; see also *Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1145 (stating that "[a] general appearance operates as a consent to jurisdiction of the person, dispensing with the requirement of service of process, and curing defects in service... a general appearance can make up for a complete failure to serve a summons").) "An answer, of course, is such an appearance, as is expressly made clear by [Code of Civil Procedure] section 1014: 'A defendant appears in an action when the defendant answers, demurs, [or] files a notice of motion to strike.'" (*Roy, supra*, 127 Cal.App.4th at p.341; see also *Batchelor v. Finn* (1959) 169 Cal.App.2d 410, 423 (stating that "[t]he filing of an answer is a general appearance"); see also *Neihaus v. Super. Ct. (Vaillancourt)* (1977) 69 Cal.App.3d 340, 345 (stating that "if such a defendant appears by formally answering a complaint, such an appearance is a general appearance and confers jurisdiction upon the court where none existed before").) "It has been long established by decisions of the courts of this state that where a defendant makes a general appearance by the

filing of an answer, demurrer, or certain motions, he submits himself to the jurisdiction of the court irrespective of an attempt in the pleading to disclaim such submission or limit the appearance.” (*Neihaus, supra*, 69 Cal.App.3d at p.345.)

Here, Chan filed her answer and subsequently filed a motion to quash. Chan’s answer constitutes a general appearance and thus waives any objection to the court’s exercise of personal jurisdiction. Chan’s motion to quash is DENIED.

Plaintiff Citibank shall prepare and submit a proposed final order consistent with this tentative ruling.